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Your Reference

Ellis Shilengudwa Incorporated

Our Reference

MAT 25912

Windhoek

1st Floor, The Steps Building
c/o Grove & Chasie Street
Kleine Kuppe, PO Box 3300
Windhoek, Namibia
T: +264 61 242 224
F: +264 61 242 226
E: info@esi.dlapiperafrica.com
www.dlapiperafrica.com

Oshakati

Unit F007
The Palms Office Complex
Oshakati, Namibia
T: +264 81 686 3645
E: conveyancing.north@esi.dlapiperafrica.com

VIA EMAIL

30 April 2026

Dear Mr Visser

Case: TLC SA Transportation and Logistic Consulting v Imex Logistics (Pty) Ltd & Another
Case No.: HC-MD-CIV-MOT-GEN-2026/00200
Subject: Rule 59 Security for Costs

1. The above-captioned matter, as well as our letter earlier today (30 April 2026), refers.
2. We have been informed by instructed counsel, who in passing bumped into your client's instructed counsel at the High Court this morning, that the security requested in our earlier notice will indeed be paid and provided.
3. This, to date and at the time of writing this letter, has not taken place yet. We do, however, accept that security will be provided forthwith. In light of this, we will now commence consulting with our client and preparing the answering affidavits.
4. Our client is only now able to instruct Advocate Jones, who is currently on brief, to prepare the answering affidavit. To do this, counsel needs to familiarise himself with the history of the matter, carefully peruse both the previous application and the present application, and consult with our client to prepare the answering affidavit.
5. It therefore follows that the answering papers will not be filed in line with the timelines in the amended notice of motion (30 April 2026). In this regard, we endeavour to file the answering papers on 4 May 2026.

Regards

Directors: Jurie Badenhorst BComm LLB LLM (Stell); Peter Johns BCom LLB (RAU); Christa de Wet BCom Law LLB (UOFS); Karin Klazen BA LLB (UCT); Mia Kellerman LLB (NWU); Jenny Vermeulen LLB LLM (UOFS); Rauna Ndilula BCom LLB (UP)

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Jenny Vermeulen
Director

T: +264 61 24 2224
[jenny.vermeulen]@esi.dlapiperafrica.com

Ellis Shilengudwa Incorporated

